

# Contract for the sale and purchase of land 2026 edition

| TERM                                                   | MEANING OF TERM                                                                                                                                                                                                                                                                                                                                                                                                    | NSW DAN:                                                                                           |
|--------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| vendor's agent                                         | <b>Ray White Park Coast East</b><br>126 Avoca Street<br>Randwick NSW 2031                                                                                                                                                                                                                                                                                                                                          | Phone: 0412 429 300<br>Email: justin.bell@raywhite.com<br>Ref: Justin Bell                         |
| co-agent<br>vendor                                     | <b>WL KENSINGTON PTY LIMITED (ACN 676 809 804)</b><br>Level 9 821 Pacific Highway Chatswood NSW 2067                                                                                                                                                                                                                                                                                                               |                                                                                                    |
| vendor's solicitor                                     | <b>LWPG &amp; Partners</b><br>Level 5 115 Pitt Street<br>SYDNEY NSW 2000                                                                                                                                                                                                                                                                                                                                           | <b>LWPG &amp; PARTNERS</b><br>Phone: 02 8021 6700<br>Email: bill.lee@lwpg.com.au<br>Ref: 241006SAL |
| date for completion                                    | refer to special condition 48                                                                                                                                                                                                                                                                                                                                                                                      | (clause 15)                                                                                        |
| land (address,<br>plan details and<br>title reference) | <b>28 KENSINGTON RD KENSINGTON NSW 2033</b><br>Lot A in the unregistered plan of subdivision being part 28 KENSINGTON RD KENSINGTON NSW 2033 being part of the land in Certificate of Title Folio Identifier 57/5A/4745                                                                                                                                                                                            |                                                                                                    |
| improvements                                           | <input checked="" type="checkbox"/> VACANT POSSESSION <input type="checkbox"/> subject to existing tenancies<br><input checked="" type="checkbox"/> HOUSE <input checked="" type="checkbox"/> garage <input type="checkbox"/> carport <input type="checkbox"/> home unit <input type="checkbox"/> carspace <input type="checkbox"/> storage space<br><input type="checkbox"/> none <input type="checkbox"/> other: |                                                                                                    |
| attached copies                                        | documents in the List of Documents as marked or numbered:<br>other documents:                                                                                                                                                                                                                                                                                                                                      |                                                                                                    |

**A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.**

|                                                                |                                             |                                                                 |                                               |                                              |
|----------------------------------------------------------------|---------------------------------------------|-----------------------------------------------------------------|-----------------------------------------------|----------------------------------------------|
| inclusions                                                     | <input type="checkbox"/> air conditioning   | <input type="checkbox"/> curtains                               | <input type="checkbox"/> insect screens       | <input type="checkbox"/> range hood          |
|                                                                | <input type="checkbox"/> blinds             | <input type="checkbox"/> dishwasher                             | <input type="checkbox"/> internet/TV receiver | <input type="checkbox"/> solar panels        |
|                                                                | <input type="checkbox"/> built-in wardrobes | <input type="checkbox"/> EV charger                             | <input type="checkbox"/> light fittings       | <input type="checkbox"/> solar power battery |
|                                                                | <input type="checkbox"/> ceiling fans       | <input type="checkbox"/> fixed floor coverings                  | <input type="checkbox"/> pool equipment       | <input type="checkbox"/> stove               |
|                                                                | <input type="checkbox"/> clothes line       | <input checked="" type="checkbox"/> other: Schedule of Finishes |                                               |                                              |
|                                                                | exclusions                                  |                                                                 |                                               |                                              |
| purchaser                                                      |                                             |                                                                 |                                               |                                              |
| purchaser's solicitor                                          |                                             |                                                                 |                                               |                                              |
| Phone:                                                         |                                             |                                                                 |                                               |                                              |
| Email:                                                         |                                             |                                                                 |                                               |                                              |
| Ref:                                                           |                                             |                                                                 |                                               |                                              |
| price                                                          | \$                                          |                                                                 |                                               |                                              |
| deposit                                                        | \$                                          | (10% of the price, unless otherwise stated)                     |                                               |                                              |
| balance                                                        | \$                                          |                                                                 |                                               |                                              |
| contract date (if not stated, the date this contract was made) |                                             |                                                                 |                                               |                                              |

**Where there is more than one purchaser** ☐ JOINT TENANTS  
☐ tenants in common ☐ in unequal shares, specify: \_\_\_\_\_

**GST AMOUNT** (optional) The price includes GST of: \$

buyer's agent

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

**SIGNING PAGE**

| <b>VENDOR</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>PURCHASER</b>                                                                                |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|-----------------------------------------|-------------------------------------------------------|-------------------------------------------------------------------|--------------------------------|--------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------|-----------------------------------------|------------------------------------|------------------------------------|----------------------|----------------------|
| <p><b>Signed by</b></p><br><br><br><p>_____<br/>Vendor</p><br><br><p><b>DUO LI</b></p> <p>_____<br/>Vendor</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <p><b>Signed by</b></p><br><br><br><p>_____<br/>Purchaser</p><br><br><p>_____<br/>Purchaser</p> |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| <b>VENDOR (COMPANY)</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <b>PURCHASER (COMPANY)</b>                                                                      |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| <p><b>Signed by WL KENSINGTON PTY LIMITED (ACN 676 809 804)</b> in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below:</p><br><br><br><table border="0"> <tr> <td>_____<br/>Signature of authorised person</td> <td>_____<br/>Signature of authorised person</td> </tr> <tr> <td><b><u>YISHENG HE</u></b><br/>Name of authorised person</td> <td><b><u>CATHERINE WENCHAN WANG</u></b><br/>Name of authorised person</td> </tr> <tr> <td><u>Director</u><br/>Office held</td> <td><u>Director</u><br/>Office held</td> </tr> </table> | _____<br>Signature of authorised person                                                         | _____<br>Signature of authorised person | <b><u>YISHENG HE</u></b><br>Name of authorised person | <b><u>CATHERINE WENCHAN WANG</u></b><br>Name of authorised person | <u>Director</u><br>Office held | <u>Director</u><br>Office held | <p><b>Signed by</b> _____ in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below:</p><br><br><br><table border="0"> <tr> <td>_____<br/>Signature of authorised person</td> <td>_____<br/>Signature of authorised person</td> </tr> <tr> <td>_____<br/>Name of authorised person</td> <td>_____<br/>Name of authorised person</td> </tr> <tr> <td>_____<br/>Office held</td> <td>_____<br/>Office held</td> </tr> </table> | _____<br>Signature of authorised person | _____<br>Signature of authorised person | _____<br>Name of authorised person | _____<br>Name of authorised person | _____<br>Office held | _____<br>Office held |
| _____<br>Signature of authorised person                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | _____<br>Signature of authorised person                                                         |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| <b><u>YISHENG HE</u></b><br>Name of authorised person                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <b><u>CATHERINE WENCHAN WANG</u></b><br>Name of authorised person                               |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| <u>Director</u><br>Office held                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <u>Director</u><br>Office held                                                                  |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| _____<br>Signature of authorised person                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | _____<br>Signature of authorised person                                                         |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| _____<br>Name of authorised person                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | _____<br>Name of authorised person                                                              |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |
| _____<br>Office held                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | _____<br>Office held                                                                            |                                         |                                                       |                                                                   |                                |                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                         |                                         |                                    |                                    |                      |                      |

**Choices**

Vendor agrees to accept a **deposit-bond** ☒ NO ☐ yes

**Nominated Electronic Lodgment Network (ELN)** (clause 4): PEXA

**Manual transaction** (clause 30) ☒ NO ☐ yes  
(if yes, vendor must provide further details, including any applicable exception, in the space below):

**Tax information (the parties promise this is correct as far as each party is aware)**

**Land tax** is adjustable ☐ NO ☒ yes  
**GST:** Taxable supply ☐ NO ☐ yes in full ☒ yes to an extent  
 Margin scheme will be used in making the taxable supply ☐ NO ☒ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make a **GSTRW payment** (GST residential withholding payment) ☐ NO ☒ yes (if yes, vendor must provide details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

**GSTRW payment (GST residential withholding payment) – details**

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name: **WL KENSINGTON PTY LIMITED (ACN 676 809 804)**

Supplier's ABN: **64 676 809 804**

Supplier's GST branch number (if applicable): **Not Applicable**

Supplier's business address: **Level 9 821 Pacific Highway Chatswood NSW 2067**

Supplier's representative: **Jacky He**

Supplier's contact phone number: **0431 585 521**

Supplier's proportion of **GSTRW payment**: **100%**

**If more than one supplier, provide the above details for each supplier.**

Amount purchaser must pay – price multiplied by the **GSTRW rate** (residential withholding rate): \$

Amount must be paid: ☒ AT COMPLETION ☐ at another time (specify):

Is any of the consideration not expressed as an amount in money? ☒ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

## List of Documents

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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| <p><b>General</b></p> <p><input checked="" type="checkbox"/> 1 property certificate for the land</p> <p><input checked="" type="checkbox"/> 2 plan of the land</p> <p><input type="checkbox"/> 3 unregistered plan of the land</p> <p><input checked="" type="checkbox"/> 4 plan of land to be subdivided</p> <p><input checked="" type="checkbox"/> 5 document to be lodged with a relevant plan</p> <p><input checked="" type="checkbox"/> 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979</p> <p><input type="checkbox"/> 7 additional information included in that certificate under section 10.7(5)</p> <p><input checked="" type="checkbox"/> 8 sewerage infrastructure location diagram (service location print)</p> <p><input checked="" type="checkbox"/> 9 sewer lines location diagram (sewer service diagram)</p> <p><input type="checkbox"/> 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract</p> <p><input type="checkbox"/> 11 <i>planning agreement</i></p> <p><input type="checkbox"/> 12 section 88G certificate (positive covenant)</p> <p><input type="checkbox"/> 13 survey report</p> <p><input type="checkbox"/> 14 building information certificate or building certificate given under <i>legislation</i></p> <p><input type="checkbox"/> 15 occupation certificate</p> <p><input type="checkbox"/> 16 lease (with every relevant memorandum or variation)</p> <p><input type="checkbox"/> 17 other document relevant to tenancies</p> <p><input type="checkbox"/> 18 licence benefiting the land</p> <p><input type="checkbox"/> 19 old system document</p> <p><input type="checkbox"/> 20 Crown purchase statement of account</p> <p><input type="checkbox"/> 21 building management statement</p> <p><input type="checkbox"/> 22 form of requisitions</p> <p><input type="checkbox"/> 23 <i>clearance certificate</i></p> <p><input type="checkbox"/> 24 land tax certificate</p> <p><b>Home Building Act 1989</b></p> <p><input type="checkbox"/> 25 insurance certificate</p> <p><input type="checkbox"/> 26 brochure or warning</p> <p><input type="checkbox"/> 27 evidence of alternative indemnity cover</p> <p><b>Swimming Pools Act 1992</b></p> <p><input type="checkbox"/> 28 certificate of compliance</p> <p><input type="checkbox"/> 29 evidence of registration</p> <p><input type="checkbox"/> 30 relevant occupation certificate</p> <p><input type="checkbox"/> 31 certificate of non-compliance</p> <p><input type="checkbox"/> 32 detailed reasons of non-compliance</p> | <p><b>Strata or community title (clause 23 of the contract)</b></p> <p><input type="checkbox"/> 33 property certificate for strata common property</p> <p><input type="checkbox"/> 34 plan creating strata common property</p> <p><input type="checkbox"/> 35 strata by-laws</p> <p><input type="checkbox"/> 36 strata development contract</p> <p><input type="checkbox"/> 37 strata management statement</p> <p><input type="checkbox"/> 38 strata renewal proposal</p> <p><input type="checkbox"/> 39 strata renewal plan</p> <p><input type="checkbox"/> 40 leasehold strata - lease of lot and common property</p> <p><input type="checkbox"/> 41 property certificate for neighbourhood property</p> <p><input type="checkbox"/> 42 plan creating neighbourhood property</p> <p><input type="checkbox"/> 43 neighbourhood development contract</p> <p><input type="checkbox"/> 44 neighbourhood management statement</p> <p><input type="checkbox"/> 45 property certificate for precinct property</p> <p><input type="checkbox"/> 46 plan creating precinct property</p> <p><input type="checkbox"/> 47 precinct development contract</p> <p><input type="checkbox"/> 48 precinct management statement</p> <p><input type="checkbox"/> 49 property certificate for community property</p> <p><input type="checkbox"/> 50 plan creating community property</p> <p><input type="checkbox"/> 51 community development contract</p> <p><input type="checkbox"/> 52 community management statement</p> <p><input type="checkbox"/> 53 document disclosing a change of by-laws</p> <p><input type="checkbox"/> 54 document disclosing a change in a development contract or management statement</p> <p><input type="checkbox"/> 55 document disclosing a change in boundaries</p> <p><input type="checkbox"/> 56 information certificate (strata)</p> <p><input type="checkbox"/> 57 information certificate (association)</p> <p><input type="checkbox"/> 58 document relevant to an exclusive supply network</p> <p><input type="checkbox"/> 59 disclosure statement - off the plan contract</p> <p><input type="checkbox"/> 60 other document relevant to off the plan contract</p> <p><b>Other</b></p> <p><input type="checkbox"/> 61</p> |
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**HOLDER OF STRATA OR COMMUNITY SCHEME RECORDS – Name, address, email address and telephone number**

# Contract for the sale of land – 2005 edition

## TERM

## MEANING OF TERM

Vendor's agent

**Raine & Horne Double Bay**  
385 New South Head Road, Double Bay, NSW 2028

Phone: (02) 9327 7971

Co-agent

Vendor

**Edda Unewisse and Kurt Unewisse**  
35 Boonah Avenue, Eastgardens

Vendor's Solicitor

**Key Property Lawyers**  
PO Box 1398, Bondi Junction 1355 NSW

Phone: 0403 529 937  
Fax: (02) 9343 0043  
Ref: NS:14/1299

Completion date

**42nd day after the date of this contract (clause 15)**

Land

(Address, plan details  
and title reference)

**35 Boonah Avenue, Eastgardens 2036**  
**Registered Plan: Lot 1 Plan DP 383 654**  
**Folio Identifier 1/383654**

☒ VACANT POSSESSION ☐ subject to existing tenancies

Improvements

☒ HOUSE ☒ garage ☐ carport ☐ home unit ☒ carspace ☐ none  
☐ other:

Attached copies

☒ Documents in the List of Documents as marked or as numbered:  
☐ Other documents:

**A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.**

Inclusions

☒ blinds ☒ curtains ☐ insect screens ☐ stove  
☒ built-in wardrobes ☒ dishwasher ☒ light fittings ☐ pool equipment  
☒ clothes line ☒ fixed floor coverings ☒ range hood ☐ TV antenna  
☒ other: Wall air-conditioner, garden corner bench and table, groundwater pump, bird bath, built in shelves in living room, workbench and machinery in garage, kitchen corner bench, wardrobe in bedroom, pot plants, washing machine in internal laundry, shelves in spare bedroom

Exclusions

Purchaser

Purchaser's solicitor

Price \$

Deposit \$ (10% of the price, unless otherwise stated)

Balance \$

Contract date (if not stated, the date this contract was made)

Vendor

Witness

**GST AMOUNT** (optional)

The price includes

GST of:

Purchaser

☐ JOINT TENANTS ☐ tenants in common ☐ in unequal shares

Witness

**Tax information (the parties promise this is correct as far as each party is aware)**

Land tax is adjustable

☒ NO ☐ yes

GST: Taxable supply

☒ NO ☐ yes in full ☐ yes to an extent

Margin scheme will be used in making the taxable supply

☐ NO ☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☒ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

**HOLDER OF STRATA OR COMMUNITY TITLE RECORDS – Name, address and telephone number**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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### WARNINGS

- Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving
 

|                                  |                                               |                                       |
|----------------------------------|-----------------------------------------------|---------------------------------------|
| AGL Gas Networks Limited         | Government Business & Government Procurement  | Public Works Dept                     |
| Council                          | Heritage Office                               | Roads & Traffic Authority             |
| County Council                   | Infrastructure Planning and Natural Resources | Rural Lands Protection Board          |
| East Australian Pipeline Limited | Land & Housing Corporation                    | Sustainable Energy Development        |
| Education & Training Dept        | Mine Subsidence Board                         | Telecommunications authority          |
| Electricity authority            | Owner of adjoining land                       | Water, sewerage or drainage authority |
| Environment & Conservation Dept  | Primary Industries Department                 |                                       |
| Fair Trading                     | RailCorp                                      |                                       |

If you think that any of these matters affects the property, tell your solicitor.
- A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 1987 or the Retail Leases Act 1994.
- If any purchase money is owing to the Crown, it may become payable when the transfer is registered.
- If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
- The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
- The purchaser will usually have to pay stamp duty on this contract. ~~The sale will also usually be a vendor duty transaction.~~ If duty is not paid on time, a party may incur penalties.
- If the purchaser agrees to the release of deposit any rights in relation to the land (for example, the rights mentioned in clause 2.8) may be subject to the rights of other persons such as the vendor's mortgagee.
- The purchaser should arrange insurance as appropriate.

### DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures such as negotiation, independent expert appraisal or mediation (for example mediation under the Law Society Mediation Guidelines).

### AUCTIONS

Regulations made under the Property Stock and Business Agents Act 2002 prescribe a number of conditions applying to sales by auction.

### **WARNING SWIMMING POOLS**

An owner of property on which a swimming pool is situated must ensure that the pool complies with the requirements of the *Swimming Pools Act 1992*. Penalties apply. Before purchasing a property on which a swimming pool is situated, a purchaser is strongly advised to ensure that the swimming pool complies with the requirements of that Act.

### **WARNING SMOKE ALARMS**

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

### **IMPORTANT NOTICE TO VENDORS AND PURCHASERS**

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract – in particular, if you are buying off the plan).

### **COOLING OFF PERIOD (PURCHASER'S RIGHTS)**

1. This is the statement required by section 66X of the *Conveyancing Act 1919* and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, **EXCEPT** in the circumstances listed in paragraph 3.
3. There is **NO COOLING OFF PERIOD**:
  - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
  - (b) if the property is sold by public auction; or
  - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
  - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.

### WARNING SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the Environmental Planning and Assessment Act 1979. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

### IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract - in particular, if you are buying off the plan).

### COOLING OFF PERIOD (PURCHASER'S RIGHTS)

1. This is the statement required by section 66X of the Conveyancing Act 1919 and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, EXCEPT in the circumstances listed in paragraph 3.
3. There is NO COOLING OFF PERIOD:
  - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
  - (b) if the property is sold by public auction; or
  - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
  - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

#### 1 Definitions (a term in *italics* is a defined term)

In this contract, these terms (in any form) mean -

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>adjustment date</i>   | the earlier of the giving of possession to the purchaser or completion;                                                                                                                                                                                                                                                                                                                                                     |
| <i>bank</i>              | a bank as defined in the Banking Act 1959, the Reserve Bank or a State bank;                                                                                                                                                                                                                                                                                                                                                |
| <i>business day</i>      | any day except a bank or public holiday throughout NSW or a Saturday or Sunday;                                                                                                                                                                                                                                                                                                                                             |
| <i>cheque</i>            | a cheque that is not postdated or stale;                                                                                                                                                                                                                                                                                                                                                                                    |
| <i>depositholder</i>     | vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i> );                                                                                                                                                                                                                                                                                                                         |
| <i>document of title</i> | document relevant to the title or the passing of title;                                                                                                                                                                                                                                                                                                                                                                     |
| <i>GST Act</i>           | A New Tax System (Goods and Services Tax) Act 1999;                                                                                                                                                                                                                                                                                                                                                                         |
| <i>GST rate</i>          | the rate mentioned in section 4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);                                                                                                                                                                                                                                                                                         |
| <i>legislation</i>       | an Act or a by-law, ordinance, regulation or rule made under an Act;                                                                                                                                                                                                                                                                                                                                                        |
| <i>normally</i>          | subject to any other provision of this contract;                                                                                                                                                                                                                                                                                                                                                                            |
| <i>party</i>             | each of the vendor and the purchaser;                                                                                                                                                                                                                                                                                                                                                                                       |
| <i>property</i>          | the land, the improvements, all fixtures and the inclusions, but not the exclusions;                                                                                                                                                                                                                                                                                                                                        |
| <i>requisition</i>       | an objection, question or requisition (but the term does not include a claim);                                                                                                                                                                                                                                                                                                                                              |
| <i>rescind</i>           | rescind this contract from the beginning;                                                                                                                                                                                                                                                                                                                                                                                   |
| <i>serve</i>             | serve in writing on the other <i>party</i> ,                                                                                                                                                                                                                                                                                                                                                                                |
| <i>settlement cheque</i> | an unendorsed <i>cheque</i> made payable to the person to be paid and drawn on its own funds by - <ul style="list-style-type: none"> <li>• a <i>bank</i>; or</li> <li>• a building society, credit union or other FCA institution as defined in Cheques Act 1986; that carries on business in Australia; or</li> </ul> if authorised in writing by the vendor or the vendor's <i>solicitor</i> , some other <i>cheque</i> ; |
| <i>solicitor</i>         | in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice <i>served</i> by the <i>party</i> ;                                                                                                                                                                                                                                                              |
| <i>terminate</i>         | terminate this contract for breach;                                                                                                                                                                                                                                                                                                                                                                                         |
| <i>vendor duty</i>       | vendor duty imposed under Chapter 4 of the Duties Act 1997;                                                                                                                                                                                                                                                                                                                                                                 |
| <i>within</i>            | in relation to a period, at any time before or during the period;                                                                                                                                                                                                                                                                                                                                                           |
| <i>work order</i>        | a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road.                                                                                                                                                                                                                                                           |



# Contract for the sale and purchase of land 2026 edition

|                                                         |                                                                                                                                                                                                                                                                                         |                                                                                              |
|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|
| <b>TERM</b>                                             | <b>MEANING OF TERM</b>                                                                                                                                                                                                                                                                  | <b>NSW DAN:</b>                                                                              |
| <b>vendor's agent</b>                                   | Ray White Park Coast East<br>126 Avoca Street, Randwick NSW 2031                                                                                                                                                                                                                        | <b>phone:</b> 9381 7050<br><b>email:</b> justin.bell@raywhite.com<br><b>ref:</b> Justin Bell |
| <b>co-agent</b>                                         |                                                                                                                                                                                                                                                                                         |                                                                                              |
| <b>vendor</b>                                           | WALKER AVE PROJECTS PTY LTD ACN 681 293 372 ATF Walker Ave Projects Unit Trust                                                                                                                                                                                                          |                                                                                              |
| <b>vendor's solicitor</b>                               | George Xylas Solicitor<br>335A Gardeners Rd, Rosebery NSW 2018                                                                                                                                                                                                                          | <b>phone:</b> 02 9693 5704<br><b>email:</b> george@gxlaw.com.au                              |
| <b>date for completion</b>                              | 42nd day after the contract date                                                                                                                                                                                                                                                        | (clause 15)                                                                                  |
| <b>land (address, plan details and title reference)</b> | 8 WALKER AVE MASCOT NSW 2020<br>LOT 1 DEPOSITED PLAN 536401<br>Folio Identifier 1/536401                                                                                                                                                                                                |                                                                                              |
|                                                         | <input checked="" type="checkbox"/> VACANT POSSESSION <input type="checkbox"/> subject to existing tenancies                                                                                                                                                                            |                                                                                              |
| <b>improvements</b>                                     | <input checked="" type="checkbox"/> HOUSE <input type="checkbox"/> garage <input type="checkbox"/> carport <input type="checkbox"/> home unit <input type="checkbox"/> carspace <input type="checkbox"/> storage space<br><input type="checkbox"/> none <input type="checkbox"/> other: |                                                                                              |
| <b>attached copies</b>                                  | <input type="checkbox"/> documents in the List of Documents as marked or as numbered:<br><input type="checkbox"/> other documents:                                                                                                                                                      |                                                                                              |

## A real estate agent is permitted by *legislation* to fill up the items in this box in a sale of residential property.

|                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>inclusions</b>            | <input type="checkbox"/> air conditioning <input type="checkbox"/> curtains <input type="checkbox"/> insect screens <input type="checkbox"/> range hood<br><input type="checkbox"/> blinds <input type="checkbox"/> dishwasher <input type="checkbox"/> internet/TV receiver <input type="checkbox"/> solar panels<br><input type="checkbox"/> built-in wardrobes <input type="checkbox"/> EV charger <input checked="" type="checkbox"/> light fittings <input type="checkbox"/> solar power battery<br><input type="checkbox"/> ceiling fans <input checked="" type="checkbox"/> fixed floor coverings <input type="checkbox"/> pool equipment <input checked="" type="checkbox"/> stove<br><input type="checkbox"/> clothes line <input type="checkbox"/> other: |
| <b>exclusions</b>            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>purchaser</b>             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>purchaser's solicitor</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>price</b>                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>deposit</b>               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>balance</b>               | (10% of the price, unless otherwise stated)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>contract date</b>         | (if not stated, the date this contract was made)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

**Where there is more than one purchaser**    ☐ JOINT TENANTS  
☐ tenants in common    ☐ in unequal shares, specify:

**GST AMOUNT** (optional) The price includes GST of: \$

**buyer's agent**

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

## SIGNING PAGE

| VENDOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | PURCHASER                                                                                                                                                                                                                                                                                                                                                                                                                    |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Signed by</b></p><br><br><br><br><br><p>_____</p> <p>Vendor</p><br><br><br><br><br><p>_____</p> <p>Vendor</p>                                                                                                                                                                                                                                                                                                                                                                                                                               | <p><b>Signed by</b></p><br><br><br><br><br><p>_____</p> <p>Purchaser</p><br><br><br><br><br><p>_____</p> <p>Purchaser</p>                                                                                                                                                                                                                                                                                                    |
| VENDOR (COMPANY)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | PURCHASER (COMPANY)                                                                                                                                                                                                                                                                                                                                                                                                          |
| <p><b>Signed by</b> WALKER AVE PROJECTS PTY LTD ACN 681 293 372<br/>in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below:</p><br><br><br><br><br><p>_____<br/>Signature of authorised person</p> <p>_____<br/>Signature of authorised person</p><br><p><u>HUSSEIN CHALICH</u><br/>_____<br/>Name of authorised person</p> <p>_____<br/>Name of authorised person</p><br><p><u>SOLE</u><br/><u>DIRECTOR/SECRETARY</u><br/>_____<br/>Office held</p> <p>_____<br/>Office held</p> | <p><b>Signed by</b><br/>in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below:</p><br><br><br><br><br><p>_____<br/>Signature of authorised person</p> <p>_____<br/>Signature of authorised person</p><br><p>_____<br/>Name of authorised person</p> <p>_____<br/>Name of authorised person</p><br><p>_____<br/>Office held</p> <p>_____<br/>Office held</p> |

**Choices**Vendor agrees to accept a **deposit-bond**☐ NO ☐ yes**Nominated *Electronic Lodgment Network (ELN)*** (clause 4)

PEXA

**Manual transaction** (clause 30)☐ NO ☐ yes

(if yes, vendor must provide further details, including any applicable exemption, in the space below):

**Tax information (the parties promise this is correct as far as each party is aware)****Land tax** is adjustable☐ NO ☒ yes**GST:** Taxable supply☐ NO ☒ yes in full ☐ yes to an extent

Margin scheme will be used in making the taxable supply

☐ NO ☒ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make an *GSTRW payment*☐ NO ☒ yes (if yes, vendor must provide

(GST residential withholding payment)

details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

***GSTRW payment (GST residential withholding payment) – details***

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name:

Supplier's ABN:

Supplier's GST branch number (if applicable):

Supplier's business address:

Supplier's representative:

Supplier's contact phone number:

Supplier's proportion of *GSTRW payment*:**If more than one supplier, provide the above details for each supplier.**Amount purchaser must pay – price multiplied by the *GSTRW rate* (residential withholding rate): \$Amount must be paid: ☐ AT COMPLETION ☐ at another time (specify):Is any of the consideration not expressed as an amount in money? ☐ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

## List of Documents

| General                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Strata or community title (clause 23 of the contract)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> 1 property certificate for the land<br><input type="checkbox"/> 2 plan of the land<br><input type="checkbox"/> 3 unregistered plan of the land<br><input type="checkbox"/> 4 plan of land to be subdivided<br><input type="checkbox"/> 5 document that is to be lodged with a relevant plan<br><input checked="" type="checkbox"/> 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979<br><input type="checkbox"/> 7 additional information included in that certificate under section 10.7(5)<br><input checked="" type="checkbox"/> 8 sewerage infrastructure location diagram (service location print)<br><input checked="" type="checkbox"/> 9 sewer lines location diagram (sewer service diagram)<br><input type="checkbox"/> 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract<br><input type="checkbox"/> 11 <i>planning agreement</i><br><input type="checkbox"/> 12 section 88G certificate (positive covenant)<br><input type="checkbox"/> 13 survey report<br><input type="checkbox"/> 14 building information certificate or building certificate given under <i>legislation</i><br><input checked="" type="checkbox"/> 15 occupation certificate<br><input type="checkbox"/> 16 lease (with every relevant memorandum or variation)<br><input type="checkbox"/> 17 other document relevant to tenancies<br><input type="checkbox"/> 18 licence benefiting the land<br><input type="checkbox"/> 19 old system document<br><input type="checkbox"/> 20 Crown purchase statement of account<br><input type="checkbox"/> 21 building management statement<br><input type="checkbox"/> 22 form of requisitions<br><input type="checkbox"/> 23 <i>clearance certificate</i><br><input type="checkbox"/> 24 land tax certificate | <input type="checkbox"/> 33 property certificate for strata common property<br><input type="checkbox"/> 34 plan creating strata common property<br><input type="checkbox"/> 35 strata by-laws<br><input type="checkbox"/> 36 strata development contract<br><input type="checkbox"/> 37 strata management statement<br><input type="checkbox"/> 38 strata renewal proposal<br><input type="checkbox"/> 39 strata renewal plan<br><input type="checkbox"/> 40 leasehold strata - lease of lot and common property<br><input type="checkbox"/> 41 property certificate for neighbourhood property<br><input type="checkbox"/> 42 plan creating neighbourhood property<br><input type="checkbox"/> 43 neighbourhood development contract<br><input type="checkbox"/> 44 neighbourhood management statement<br><input type="checkbox"/> 45 property certificate for precinct property<br><input type="checkbox"/> 46 plan creating precinct property<br><input type="checkbox"/> 47 precinct development contract<br><input type="checkbox"/> 48 precinct management statement<br><input type="checkbox"/> 49 property certificate for community property<br><input type="checkbox"/> 50 plan creating community property<br><input type="checkbox"/> 51 community development contract<br><input type="checkbox"/> 52 community management statement<br><input type="checkbox"/> 53 document disclosing a change of by-laws<br><input type="checkbox"/> 54 document disclosing a change in a development contract or management statement<br><input type="checkbox"/> 55 document disclosing a change in boundaries<br><input type="checkbox"/> 56 information certificate (strata)<br><input type="checkbox"/> 57 information certificate (association)<br><input type="checkbox"/> 58 document relevant to an exclusive supply network<br><input type="checkbox"/> 59 disclosure statement - off the plan contract<br><input type="checkbox"/> 60 other document relevant to the off the plan contract<br><b>Other</b><br><input type="checkbox"/> 61 |
| <b>Home Building Act 1989</b><br><input type="checkbox"/> 25 insurance certificate<br><input type="checkbox"/> 26 brochure or warning<br><input type="checkbox"/> 27 evidence of alternative indemnity cover<br><b>Swimming Pools Act 1992</b><br><input type="checkbox"/> 28 certificate of compliance<br><input checked="" type="checkbox"/> 29 evidence of registration<br><input checked="" type="checkbox"/> 30 relevant occupation certificate<br><input type="checkbox"/> 31 certificate of non-compliance<br><input type="checkbox"/> 32 detailed reasons of non-compliance                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

**HOLDER OF STRATA OR COMMUNITY SCHEME RECORDS – Name, address, email address and telephone number**

# Contract for the sale of land – 2005 edition

## TERM

## MEANING OF TERM

Vendor's agent Michael Michos  
RRE Properties  
403 Gardeners Road, Roseberry  
Phone: 9667 2868  
Mobile: 0412 877 086  
Eml: michael@rre.com.au

Co-agent  
Vendor The Uniting Church in Australia Property Trust (NSW)

Vendor's Solicitor Jae Hunt, Level 9, 222 Pitt Street, Sydney NSW 2000 Tel 0477 717 840  
Fax 02 9264 4487

Completion date 42 days after the contract date (clause 15)  
Land 9 Flora Street, Mascot NSW 2020  
(Address, plan details and title reference) Folio Identifier 5/19043 and being Lot 5 in DP 19043

Improvements ☐ VACANT POSSESSION ☒ subject to existing tenancies  
☒ HOUSE ☒ garage ☐ carport ☐ home unit ☐ carspace ☐ none  
☐ other:  
Attached copies ☐ Documents in the List of Documents as marked or as numbered:  
☐ Other documents:

### A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

Inclusions ☒ blinds ☐ curtains ☒ insect screens ☒ stove  
☒ built-in wardrobes ☒ dishwasher ☒ light fittings ☐ pool equipment  
☒ clothes line ☒ fixed floor coverings ☒ range hood ☒ TV antenna  
☐ other:  
Exclusions  
Purchaser  
Purchaser's solicitor  
Price \$  
Deposit \$ (10% of the price, unless otherwise stated)  
Balance \$  
Contract date (if not stated, the date this contract was made)

Vendor

Witness

**GST AMOUNT** (optional)  
The price includes  
GST of: \$

Purchaser

☐ JOINT TENANTS ☐ tenants in common ☐ in unequal shares

Witness

### Tax information (the parties promise this is correct as far as each party is aware)

Vendor duty is payable ☒ NO ☐ yes in full ☐ yes to an extent  
Deposit can be used to pay vendor duty ☒ NO ☐ yes  
Land tax is adjustable ☒ NO ☐ yes  
GST: Taxable supply ☒ NO ☐ yes in full ☐ yes to an extent  
Margin scheme will be used in making the taxable supply ☒ NO ☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☒ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

**HOLDER OF STRATA OR COMMUNITY TITLE RECORDS – Name, address and telephone number**

| General                                                                                                                                                                 | Strata or community title (clause 23 of the contract)                                                                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> 1 property certificate for the land                                                                                                 | <input type="checkbox"/> 24 property certificate for strata common property                                                |
| <input checked="" type="checkbox"/> 2 plan of the land                                                                                                                  | <input type="checkbox"/> 25 plan creating strata common property                                                           |
| <input type="checkbox"/> 3 unregistered plan of the land                                                                                                                | <input type="checkbox"/> 26 strata by-laws not set out in <i>legislation</i>                                               |
| <input type="checkbox"/> 4 plan of land to be subdivided                                                                                                                | <input type="checkbox"/> 27 strata development contract or statement                                                       |
| <input type="checkbox"/> 5 document that is to be lodged with a relevant plan                                                                                           | <input type="checkbox"/> 28 strata management statement                                                                    |
| <input checked="" type="checkbox"/> 6 section 149(2) certificate (Environmental Planning and Assessment Act 1979)                                                       | <input type="checkbox"/> 29 leasehold strata - lease of lot and common property                                            |
| <input type="checkbox"/> 7 section 149(5) information included in that certificate                                                                                      | <input type="checkbox"/> 30 property certificate for neighbourhood property                                                |
| <input checked="" type="checkbox"/> 8 sewerage connections diagram                                                                                                      | <input type="checkbox"/> 31 plan creating neighbourhood property                                                           |
| <input type="checkbox"/> 9 sewer mains diagram                                                                                                                          | <input type="checkbox"/> 32 neighbourhood development contract                                                             |
| <input type="checkbox"/> 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract | <input type="checkbox"/> 33 neighbourhood management statement                                                             |
| <input type="checkbox"/> 11 section 88G certificate (positive covenant)                                                                                                 | <input type="checkbox"/> 34 property certificate for precinct property                                                     |
| <input type="checkbox"/> 12 survey report                                                                                                                               | <input type="checkbox"/> 35 plan creating precinct property                                                                |
| <input type="checkbox"/> 13 section 317A certificate (certificate of compliance)                                                                                        | <input type="checkbox"/> 36 precinct development contract                                                                  |
| <input type="checkbox"/> 14 building certificate given under <i>legislation</i>                                                                                         | <input type="checkbox"/> 37 precinct management statement                                                                  |
| <input type="checkbox"/> 15 insurance certificate (Home Building Act 1989)                                                                                              | <input type="checkbox"/> 38 property certificate for community property                                                    |
| <input type="checkbox"/> 16 brochure or note (Home Building Act 1989)                                                                                                   | <input type="checkbox"/> 39 plan creating community property                                                               |
| <input type="checkbox"/> 17 section 24 certificate (Swimming Pools Act 1982)                                                                                            | <input type="checkbox"/> 40 community development contract                                                                 |
| <input type="checkbox"/> 18 lease (with every relevant memorandum or variation)                                                                                         | <input type="checkbox"/> 41 community management statement                                                                 |
| <input type="checkbox"/> 19 other document relevant to tenancies                                                                                                        | <input type="checkbox"/> 42 document disclosing a change of by-laws                                                        |
| <input type="checkbox"/> 20 old system document                                                                                                                         | <input type="checkbox"/> 43 document disclosing a change in a development or management contract or statement              |
| <input type="checkbox"/> 21 Crown tenure card                                                                                                                           | <input type="checkbox"/> 44 document disclosing a change in boundaries                                                     |
| <input type="checkbox"/> 22 Crown purchase statement of account                                                                                                         | <input type="checkbox"/> 45 certificate under Management Act – section 109 (Strata Schemes) or section 26 (Community Land) |
| <input type="checkbox"/> 23 Statutory declaration regarding <i>vendor duty</i>                                                                                          |                                                                                                                            |

### WARNINGS

- Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving
 

|                                  |                                               |                                       |
|----------------------------------|-----------------------------------------------|---------------------------------------|
| AGL Gas Networks Limited         | Government Business & Government Procurement  | Public Works Dept                     |
| Council                          | Heritage Office                               | Roads & Traffic Authority             |
| County Council                   | Infrastructure Planning and Natural Resources | Rural Lands Protection Board          |
| East Australian Pipeline Limited | Land & Housing Corporation                    | Sustainable Energy Development        |
| Education & Training Dept        | Mine Subsidence Board                         | Telecommunications authority          |
| Electricity authority            | Owner of adjoining land                       | Water, sewerage or drainage authority |
| Environment & Conservation Dept  | Primary Industries Department                 |                                       |
| Fair Trading                     | RailCorp                                      |                                       |

 If you think that any of these matters affects the property, tell your solicitor.
- A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 1987 or the Retail Leases Act 1994.
- If any purchase money is owing to the Crown, it may become payable when the transfer is registered.
- If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
- The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
- The purchaser will usually have to pay stamp duty on this contract. The sale will also usually be a vendor duty transaction. If duty is not paid on time, a party may incur penalties.
- If the purchaser agrees to the release of deposit any rights in relation to the land (for example, the rights mentioned in clause 2.8) may be subject to the rights of other persons such as the vendor's mortgagee.
- The purchaser should arrange insurance as appropriate.

### DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures such as negotiation, independent expert appraisal or mediation (for example mediation under the Law Society Mediation Guidelines).

### AUCTIONS

Regulations made under the Property Stock and Business Agents Act 2002 prescribe a number of conditions applying to sales by auction.

### **WARNING SWIMMING POOLS**

An owner of property on which a swimming pool is situated must ensure that the pool complies with the requirements of the *Swimming Pools Act 1992*. Penalties apply. Before purchasing a property on which a swimming pool is situated, a purchaser is strongly advised to ensure that the swimming pool complies with the requirements of that Act.

### **WARNING SMOKE ALARMS**

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

### **IMPORTANT NOTICE TO VENDORS AND PURCHASERS**

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract – in particular, if you are buying off the plan).

### **COOLING OFF PERIOD (PURCHASER'S RIGHTS)**

1. This is the statement required by section 66X of the *Conveyancing Act 1919* and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, **EXCEPT** in the circumstances listed in paragraph 3.
3. There is **NO COOLING OFF PERIOD**:
  - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
  - (b) if the property is sold by public auction; or
  - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
  - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.